

Roundtable Report

Government AI Hire, Use, Buy (HUB) Roundtable Series

Roundtable 1: Government as a User of AI

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Introduction

The U.S. government has embraced the potential of artificial intelligence, but there are not yet sufficiently comprehensive strategies and guardrails, nor robust interagency coordination, across federal agencies to maximize AI public good applications while mitigating risks. In light of this gap, Georgetown's [Government AI Hire, Use, Buy \(HUB\) Roundtable Series](#) brings together leading voices to grapple with the legal liability questions that AI poses, examine AI's potential to transform government services, and consider how the government can better attract and use AI talent.

The federal government has been particularly active on AI over the last two years. Following the release of several advanced large language models, President Biden signed the groundbreaking Executive Order (EO) on the Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence in October 2023.¹ In March 2024, the Office of Management and Budget released its government-wide policy, Advancing Governance, Innovation, and Risk Management for Agency Use of Artificial Intelligence, which complements the recently finalized European Union AI Act.² Additionally, the Government Accountability Office conducted its audit of current AI uses by federal agencies.³ However, many questions on the U.S. government's use, procurement, and hiring of AI tools and talent remain unaddressed.

Georgetown University's [Center for Security and Emerging Technology](#) and [Beeck Center for Social Impact and Innovation](#), together with the [Georgetown Law Institute for Technology Law and Policy](#) (Tech Institute), led a series of invite-only roundtables over the course of 2024 to discuss these pressing questions. **This resulting report was authored in 2024 after those discussions.**

This report summarizes and reflects on the key findings, insights, and recommendations from the first roundtable of the HUB Series: "Government as a User of AI." This roundtable was led by the Tech Institute and focused on the U.S. government's use of AI technologies. The HUB Series operates under the Chatham House Rule; therefore, all names, affiliations, and other identifying information have been omitted from this report.

The HUB Series is funded by a grant from the Rockefeller Foundation.

Overview of Discussion

The daylong roundtable featured four sessions examining the government's use of AI:

- I. Foundations, ethical frameworks, and oversight
- II. Security and transparency
- III. AI applications and challenges, including bias and workforce issues
- IV. AI in the policy and decision-making process

Attendees included representatives from federal government, civil society groups working on AI governance issues, legislators, and industry.

We provide a summary of the discussion from each of the sessions below.* Key themes, concerns, and recommendations to emerge from the group discussion included:

1. The challenge of defining AI in a way that captures all potential use cases, benefits, and harms without regulating so broadly that the definition includes old technology not previously considered AI.
2. The importance of developing a combination of standards, guidance, binding policies, and legal frameworks to govern the use of AI, rather than relying on any one of these tools alone.
3. The need to maintain diverse, human-in-the-loop perspectives to oversee AI use in government and ensure protections for marginalized groups, federal employees, and others.
4. An agreement that AI is best poised to positively impact government services in data analysis, process improvement, and other complementary roles, rather than as a replacement for government workers.
5. A sentiment that more resourcing is needed for:
 - a. Agency-wide and individual-level AI training and education.
 - b. Development of standards and guidance to support responsible and secure AI adoption and integration.

* Recommendations included in this summary represent the views of discussion participants in their individual capacities. They are not formal recommendations provided by any invited entity or by any of the organizations responsible for the roundtable and this report.

Session I: Foundations, Ethical Frameworks, and Oversight

Questions for discussion included:

- *Do we have, or can we reach, a shared understanding of what AI is and is not for purposes of this discussion?*
- *What would a government-wide framework for the use of AI look like? How could or should it be established? Are there aspects of AI that cannot or should not be addressed on a government-wide basis?*
- *Should we consider only current laws and rules that may be applicable to government AI uses? Is it necessary, useful, or futile to consider whether new or modified legislation or regulation is warranted?*
- *Are existing oversight mechanisms sufficient to ensure government AI uses meet existing or future ethical standards? If not, what should oversight look like?*

The first session started with a framing discussion on how to define AI. The group consensus was that a shared, appropriate definition of AI is necessary to properly scope regulation and to inventory federal AI use. This tied into oversight of government's use of AI, as the group weighed the benefits of a preemptory regulatory regime that defines the scope of regulations up front, versus a more flexible approach that can adapt as the technology evolves.

Some in the room drew the comparison to the European Union's "hard law" approach that categorizes AI uses and their risks in order to establish relevant regulations, which contrasts with "soft law" approaches, like in Japan, that encourage a more general classification of AI.

In the end, the group agreed that an all-of-the-above approach is likely necessary. Participants called for policy frameworks and guidelines informed by the goals and needs of agencies adopting AI, coupled with future litigation and court guidance that can respond to and address AI harms not accounted for in preemptory guidelines and policies.

Session II: Security and Transparency

Questions for discussion included:

- *How can the government protect its AI systems from cyberattacks and manipulation? How can the government balance these security needs with the need for transparency and public trust?*
- *The Biden EO contemplates roles for the National Institute of Standards and Technology, Department of Homeland Security, Department of Energy, National Security Council, and others in addressing risks to critical infrastructure and guiding military and intelligence use of AI. What agencies and/or areas of concern are missing?*
- *In addition to conditioning federal funding for certain projects on AI safety and establishing reporting requirements, what other levers are available to ensure security and transparency? How can the government maximize accountability at every step of its processes?*
- *Per Senator Chuck Schumer's SAFE Innovation AI road map, are there areas where high-impact uses of AI should be limited or banned entirely?*

The second session dug more deeply into what might constitute guidelines and policies sufficient to ensure appropriate, secure, and safe government AI. The group raised several challenges to establishing effective government frameworks, including:

1. Inconsistent follow-through on agency inventory of AI use cases, as required by the Biden AI EO and congressional legislation.
2. Unanswered questions on how developers and the agencies deploying AI applications appropriately incorporate data disclosure and liability principles into contracts.
3. A lack of diligent tracking of the benefits and harms that have resulted so far from AI already in use.

Some in the group called for more funding for the National Institute of Standards and Technology, which has led in establishing the standards and resources—such as the [AI Risk Management Framework](#)—that agencies, the private sector, and others rely on when developing and deploying AI.

However, participants were consistent in expressing that voluntary standards will have limits, and thus some form of regulation likely will be needed. Several advocated for establishing guidelines and regulations now, but they also noted that a robust ex post litigation model will be needed to account for new harms, fact patterns, and technological developments that emerge over time and are not fully accounted for by established policies.

Session III: AI Applications and Challenges, Including Bias and Workforce Issues

Questions for discussion included:

- *How can the government measure the efficiency and public good of its AI initiatives? What challenges stand in the way of successful and responsible implementation?*
- *What approach(es) should be taken, at a government-wide or agency-specific level, to identify and mitigate discriminatory outcomes in justice, health care, housing, and other areas? What is the impact of the Blueprint for an AI Bill of Rights and the Biden EO's provisions prohibiting agency algorithmic discrimination?*
- *What labor and workforce concerns must be part of the discussion on challenges to the use of AI by the government? What impact does government use of AI have on the labor market?*
- *How can the government promote consumer trust that it will use AI responsibly and that it will prevent AI-enabled fraud and deception of official government content and communications?*
- *What oversight mechanisms exist or should be implemented to ensure accountability and fairness in the use of AI? Should these be consistent across the government?*

The third session focused on the intersection of AI use in government and the civil servants and teams using the technology. Considering how best to mitigate bias and discriminatory outcomes from government use of AI, the group highlighted the need for a diversity of thought, background, and expertise in guiding policy decisions. According to the group, this should include labor unions, federal employee representation groups, and traditionally marginalized communities.

Some participants argued for greater training for AI developers on workforce protections, such as protected class provisions, to ensure development of AI systems that protect these attributes.

Finally, participants discussed the role of the government employee in deploying and using AI systems. Participants called for:

- Organization-wide training on what AI systems can and cannot do
- Individual-level training and certification on AI
- Government or agency-wide standards for system design to ensure AI tools meet agreed-upon metrics

Participants also expressed the critical need for a human-in-the-loop framework so that AI serves as an enhancement for government functions, such as data analysis and process improvement. AI should not be a replacement when it comes to adjudicating decisions or setting policies, for example. Participants argued for this in order to ensure worker protections and so that someone who understands the AI system's limitations can provide oversight to mitigate harm.

Session IV: AI in the Policy and Decision-Making Process

Questions for discussion included:

- *What steps of the benefits-administration process lend themselves more or less to the use of AI? Are there different considerations for benefits administration, rulemaking, or regulatory enforcement?*
- *How should the government move from focusing on individual agency use cases to closing the interagency data and AI application gap?*
- *Can AI be used to inform policy decisions and resource allocation in a responsible and unbiased way?*
- *What are the limitations of AI in government decision-making? How can the government develop responsible practices for using AI in a way that complements, but does not replace, human expertise?*
- *What guardrails should be in place for outside parties' use of AI in working with, or advocating before, government agencies?*
- *How does the government build public trust in its overall processes in the age of AI?*

The final session focused on how and where the government is best poised to use AI, and in doing so, how to ensure the public trusts those uses.

Echoing earlier themes, participants noted that AI is best suited to large-scale data analysis, process improvement, and other tasks that are complementary to the work of humans and do not require critical thinking skills. This stands in contrast to deploying AI in decision-making roles, policy development, or other “determinative” applications where the risks are higher and human judgment is more necessary. Areas offered as ripe for AI use included benefits administration, grant writing, and proposal review. One discussant also noted the potential for AI to enhance accessibility tools.

The group also discussed how to ensure public trust in those use cases if and when the tools are deployed. The conversation solidified around two important themes

First, human oversight of AI tools is absolutely necessary. This will ensure tools are being used properly and that there is continued assessment and evaluation. National Science Foundation’s guidance on the use of AI for grant writing is a helpful example of AI-human integrated processes.⁴

Second, there must be transparency with the public about government use of AI. Focusing on publicizing specific use cases of AI can build trust. However, some warned that there are trade-offs between transparency and confidentiality, making clear, black-and-white transparency efforts a challenge.

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Endnotes

¹ Exec. Order No. 14110, 88 FR 75191 (2023), www.federalregister.gov/documents/2023/11/01/2023-24283/safe-secure-and-trustworthy-development-and-use-of-artificial-intelligence.

² Director of Office of Management and Budget, *Advancing Governance, Innovation, and Risk Management for Agency Use of Artificial Intelligence*, M-24-10, March 28, 2024, www.whitehouse.gov/wp-content/uploads/2024/03/M-24-10-Advancing-Governance-Innovation-and-Risk-Management-for-Agency-Use-of-Artificial-Intelligence.pdf; European Union, “Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 Laying Down Harmonised Rules on Artificial Intelligence and Amending Regulations (EC) No 300/2008, (EU) No 167/2013, (EU) No 168/2013, (EU) 2018/858, (EU) 2018/1139 and (EU) 2019/2144 and Directives 2014/90/EU, (EU) 2016/797 and (EU) 2020/1828 (Artificial Intelligence Act)Text with EEA Relevance” (2024), <https://artificialintelligenceact.eu/the-act/>.

³ Government Accountability Office, *Artificial Intelligence: Agencies Have Begun Implementation but Need to Complete Key Requirements* (Washington, D.C: Government Accountability Office, December 2023), www.gao.gov/assets/d24105980.pdf.

⁴ National Science Foundation, “Notice to Research Community: Use of Generative Artificial Intelligence Technology in the NSF Merit Review Process,” December 14, 2023, <https://new.nsf.gov/news/notice-to-the-research-community-on-ai>.